

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice S M Kuddus Zaman

CIVIL REVISION NO.3175 OF 2015

In the matter of:

An application under Section 115(1) of the Code of Civil Procedure.

And

Goshai Chandra Das being dead his heirs: Bishnu Das
... Petitioner

-Versus-

Shawpan Bhumali being dead his heirs: Shusan Kumar
Mali and others

... Opposite parties

Mr. Md. Mostafa with

Mr. Mohammad Masud Parvez, Advocates

.... For the petitioners.

Mr. Shahadot Hossen, Advocate

.... For the opposite party Nos.1(Ka)-

1(Ga).

Heard and Judgment on 30.10.2024.

This Rule was issued calling upon the opposite party No.1 to show cause as to why the judgment and decree dated 05.08.2015 passed by the learned Joint District Judge, First Court, Jhalakati in Title Appeal No.10 of 2014 allowing the same, reversing those dated 27.02.2014 passed by the learned Senior Assistant Judge, Nalchity, Jhalakati in Title Suit No.158 of 2003 decreeing the suit should not be set aside and or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the opposite party as plaintiff instituted above suit for enforcement of bainapatra dated 20.02.1994 executed by defendant No.1 for sale of disputed 10 decimal land alleging that

defendant No.1 as the owner and possessor agreed to sale above land to the plaintiff at a price of Taka 3,00,000/- and on receipt of Taka 2.50,000/- he executed above bainapatra and delivered possession. Plaintiff constructed a dwelling house in above land and living there with his family. The plaintiff offered the defendant remaining Taka 5,000/- and requested him to execute a sale deed but the defendant took time on various pretexts and finally refused to do so on 22.05.2002.

Defendant No.1 contested the suit by filing a written statement alleging that the plaintiff being a homeless person approached him for a shelter and the defendant rented him a ghor in the disputed land at a monthly rent of Taka 50/-. Plaintiff resided in above ghor on payment of rents and after getting married his brother also started living as monthly tenant in another ghor. The defendant can write his name but showing his left thumb impression (LTI) the plaintiff has created above forged bainapatra in collusion with the scribe and witnesses.

Plaintiff examined 3 witnesses and defendant examined 1. Documents produced and proved by the plaintiff were marked as Exhibit Nos.1 series and 2-3. But the defendant did not produce any document.

On consideration of facts and circumstances of the case and evidence on record the learned Senior Assistant Judge decreed the suit.

Being aggrieved by above judgment and decree of the trial Court defendant preferred Title Appeal No.10 of 2014 to the District Judge, Jhalokati which was heard by the learned Joint District Judge who

allowed the appeal, set aside the judgment and decree of the trial Court and dismissed the suit.

Being aggrieved by above judgment and decree of the Court of appeal below the respondent as petitioner moved to this Court and obtained this Rule.

Mr. Md. Mostaf, learned Advocate for the petitioner submits that in order to prove the due execution of unregistered bainapatra dated 20.02.1994 the plaintiff himself gave evidence as PW1 and produced above bainapatra which was marked as Exhibit No.4. The two witnesses of above bainapatra namely Abdus Sattar Mollah and Motaleb Howlader gave mutually corroborative evidence as PW2 and PW3 respectively. The plaintiff has claimed part performance of above bainapatra and stated that on getting possession he constructed a dwelling house and living in the same alongwith the members of his family. The defendant admits plaintiff's possession in the disputed land. The defendant has claimed to have rented out above house to the plaintiff. But the defendant did not make any endeavor to prove above claim by legal evidence. On consideration of above materials on record the learned Senior Assistant Judge rightly decreed the suit but the learned Judge of the Court of appeal below without reversing any material findings of the trial Court most illegally allowed the appeal and set aside the lawful judgment and decree of the trial and dismissed the suit which is not tenable in law.

On the other hand Mr. Shahadot Hossen, learned Advocate for the opposite party No.1 submits that the defendant was not the rightful owner and possessor of disputed 10 decimal land. He was owner of $8\frac{1}{2}$ decimal land. As such he had no legal authority to enter into any contract for sale of disputed 10 decimal land. Defendant did not execute above bainapatra by putting his LTI and the same was a forged document. Plaintiff was a mere monthly tenant of defendant No.1 in the disputed house at a rental of Taka 50/-. The defendant transferred above land jointly with his brother to one Charu Bibi with condition to return the same and subsequently the wife of the defendant and brother of the plaintiff got above land returned from above Charu Bibi. The scribe of the disputed bainapatra deed dated 20.02.1994 was an important witness but above scribe was neither examined at trial nor any explanation was provided by the plaintiff for his non examination.

On consideration of above materials on record the learned Judge of the Court of appeal below has rightly allowed the appeal, dismissed the erroneous judgment and decree of the trial Court and dismissed the suit which calls for no interference.

I have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

This is a suit for specific performance of unregistered bainapatra dated 20.02.1994 for sale of 10 decimal land appertaining to S.A. Khatian Nos.11 and 1881. Defendant claims that he had title and

possession only in $8\frac{1}{2}$ decimal land and the remaining $1\frac{1}{2}$ decimal land belongs to his brother Narayan. This is not a suit for declaration of title or partition. If any person contracts to transfers land in excess of his lawful title then sale deed shall be effective only to the extent of his lawful title and the deed shall not become void or voidable for mere inclusion of excessive land. If defendant No.1 was the rightful owner and possessor of only $8\frac{1}{2}$ decimal land then only that land will be attracted by above bainapatra if the same is proved to be lawfully executed and a valid document.

The plaintiff has claimed to get delivery of possession of the disputed land on the basis of above bainapatra and constructed his dwelling house and living in the same alongwith the members of the family. The defendant admits plaintiff possession in above dwelling house and claims that above dwelling huts belonged to him and plaintiff was his monthly tenant.

Plaintiff himself gave evidence in this case as PW1 and reiterated his claims as set out in the plaint. He stated that the defendant contracted to sale the disputed land for a consideration of Taka 3,000,00/- and on receipt of an advance of Taka 250,000/- he executed the impugned bainapatra on 20.02.1994 and delivered possession. Above bainapatra dated 20.02.1994 was marked as Exhibit No.4. Two witnesses of above bainapatra namely Sattar Mollah and Md. Motaleb gave evidence as PW2 and PW3 respectively and supported the due

execution of above bainapatra by defendant No.1 on receipt of Taka 250,000. Above PWs were cross examined by the defendant but their evidence remained free from material contradiction and credence inspiring.

Learned Advocate for the opposite party repeatedly stated that the impugned bainapatra (Exhibit No.4) was a forged document which was created by PW1 in collusion PW2, PW3 and the scribe by forging the LTI of defendant No.1. But there is no specific allegation in the written statement that the LTI of the defendant in above bainapatra was forged. Defendant No.1 gave evidence as DW1 but in his evidence he did not make any specific claim that above bainapatra was a forged document or his LTI in above document was forged or he did not execute above document by putting his LTI. On the contrary in cross examination DW1 admitted that he gave LTI but he did not seek expert opinion as to above LTI.

The defendant claims that he inducted the plaintiff in the possession of the disputed ghar as a monthly tenant. But no specific mention has been made in the written statement as to the mode of above tenancy or the names of the persons in whose presence above tenancy agreement was executed. No evidence oral or documentary was adduced by the defendant to substantiate above claim. No rent agreement or rent receipt was produced at trial. On Consideration of above materials on record the learned Judge of the trial Court rightly

held that the defendant could not prove by legal evidence that the plaintiff was his monthly tenant for the disputed premises.

On consideration of above facts and circumstances of the case and materials on record I hold that the learned Judge of the trial Court correctly appreciated the evidence on record and rightly decreed the suit. But the learned Judge of the Court of appeal below without reversing any material findings of the trial Court has most illegally allowed the appeal and reversed the evidence based judgment of the trial Court and dismissed the suit which is not tenable in law.

In above view of the materials on record I find substance in this application under Section 115(1) of the Code of Civil Procedure and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is absolute. The impugned judgment and decree dated 05.08.2015 passed by the learned Joint District Judge, First Court, Jhalakati in Title Appeal No.10 of 2014 is set aside and those dated 27.02.2014 passed by the learned Senior Assistant Judge, Nalchity, Jhalakati in Title Suit No.158 of 2003 is restored.

However, there is no order as to costs.

Send down the lower Court's record immediately.